

STANDARD RESIDENTIAL TENANCY AGREEMENT

This form of agreement is prescribed under the Residential Tenancies Act (the Act) and applies to all residential tenancies in Manitoba. Two copies must be made and signed by both Landlord and Tenant. One copy must be given to the Tenant within 21 days after it is signed. This tenancy Agreement is made in duplicate between:

Winpark Dorchester Properties, 585 River Ave, Winnipeg, Manitoba R3L 2S9 Phone 633-8787 (Fax 633-5252),
the Landlord and

Evan Rosner The Tenant(s)

1.) ADDRESS OF RENTAL UNIT

10 -585 Corydon WINNIPEG MANITOBA R3L 0P3

2.) TERM OF TENANCY

The Tenancy is for a fixed term beginning on **May 1, 2012** and ending on **June 30, 2013** (the termination date). (Leave expiry date blank if the agreement is for a periodic tenancy and no set term is intended)

Unless the Tenancy has been terminated in accordance with the act, the Landlord shall offer the Tenant a renewal of this Agreement at least three (3) months before the termination date. If the Tenant does not sign and return the renewal at least two (2) months before the termination date, this Agreement will expire on the termination date.

3.) AMOUNT OF RENT PAYABLE

The Tenant agrees to pay to the Landlord on the **1 st** day of every month in the following amount.

(Note: both columns are to be completed if a rent increase is due on the rental unit before the termination date of this Agreement).

Effective on May 1 2012

For Rental Unit: \$625.00
For 0 Pkg. Spaces: \$
Less Discount
(if any): \$--
Rent Payable: \$625.00

Effective on July 1, 2012

For Rental Unit: \$ 631.00
For 0 Pkg. Spaces: \$
Less Discount
(if any): \$
Rent Payable \$ 631.00

Discount (Complete this section, where applicable, if the Total Payable includes a discount.)

- ☐ Discount is the same as last year's or increased by \$.
☐ Discount is reduced by \$.
☐ Discount is removed.

☐ The proposed Total Rent is subject to an application to the Residential Tenancies Branch for an above-guideline rent increase. The discount may be reduced or removed depending on the final decision on the landlord's application. In any event, the Total Payable will not exceed \$.

Note: A landlord is not required to offer a rent discount, but if a discount is given, it must be provided for in a written agreement. Reducing or removing a rent discount is not considered a rent increase under *The Residential Tenancies Act*. However, an unconditional discount cannot be reduced or removed unless the tenant receives written notice of at least 3 months. If a tenancy agreement or discount agreement is for a fixed term, a landlord cannot reduce or remove an unconditional discount during the term of the agreement. If a discount is subject to a condition, e.g. paying the rent on time, the landlord can withdraw it without notice if the tenant does not meet the condition.

***Discounts are non-transferable

Assignment fee \$75.00

The tenants must notify Winpark Dorchester Properties and the resident manager of their intention to sublet. A \$75.00 fee must be paid with notification. The fee is an administration charge. The tenants are responsible for rent payments until a sublet is approved.

Late Fee AS SCHEDULED BY RTB,

All Tenants are responsible to pay the Landlord a charge for each and every day of rent, which is not paid within three (3) days from the date on which the rental payment falls due and payable.

N.S.F. FEE \$60.00

As well, all Tenants must pay to the Landlord, a charge of \$60.00 for each and every cheque returned to the Landlord N.S.F. (Non-Sufficient Funds).

4.) SERVICES AND FACILITIES

- The Tenant shall pay for the following services and facilities:
HYDRO TELEPHONE CABLE INTERNET PARKING
- The Landlord shall provide or pay the supplier of all other services and facilities, including the following utilities:
- WATER HEAT

5.) SECURITY DEPOSIT

The Landlord acknowledges receipt from the Tenant of a security deposit of **\$312.50 paid on April 27, 2012**. The Landlord shall deal with the security deposit as required by the Act. The deposit shall be returned to the Tenant within 14 days after the end of the Tenancy with interest at the rate prescribed by regulation unless the Tenant agrees in writing to a claim against the security deposit by the Landlord or the Landlord makes a claim to the Residential Tenancies Branch. The security deposit cannot be applied to the last month's rent unless both Landlord and Tenant agree.

6.) OCCUPANTS OF RENTAL UNIT

In addition to the Tenant and any increase in the Tenant's family by marriage, birth or adoption during the tenancy, only the following persons may occupy the rental unit:

7.) USE OF THE RENTAL UNIT FOR RESIDENTIAL PURPOSES ONLY

The tenant agrees to use the rental unit and residential complex for residential purposes only and shall not carry on, or permit to be carried on, any trade or business in the rental unit without the written consent of the Landlord.

8.) FURNITURE(Check only ONE of the following)

- ☒ No furniture is provided
☐ Furniture is provided and a separate furniture rental agreement is attached

9.) OBLIGATIONS UNDER THE ACT

The Landlord and Tenant agree to comply with all obligations imposed on them by the Act.

10.) TERMINATION

The Landlord or the Tenant may terminate this Agreement in the manner and under the circumstances described in the Act.

11.) ADDITIONAL RULES AND CONDITIONS

- The Landlord and Tenant agree to comply with any additional rules and conditions that are attached to this Tenancy Agreement. Any additional rule or condition that is inconsistent with the Act cannot be enforced.
- Winpark Dorchester Properties does not permit painting. Tenants should be aware that professional painters are used by Winpark Dorchester Properties and costs to re-paint as a result of tenants' unauthorized painting can far exceed the security deposit.
- No pets allowed unless approved by the landlord. Only registered service dogs are allowed in Winpark Dorchester properties.

12.) INSURANCE

It is the responsibility of the tenant to purchase and maintain tenant insurance for personal property and/or contents and additional living expenses. As well, this tenant insurance should include general liability in an amount of not less than \$1,000,000.00 which is the standard limit now included with most tenant insurance. You may be asked to provide a copy of your coverage at the request of the landlord.

DATE April 30, 12

J.F. Mason
SIGNATURE OF LANDLORD

DATE Apr 30, 2012

[Signature]
SIGNATURE OF TENANT

DATE _____

SIGNATURE OF TENANT

DATE _____

CO-SIGNATURE/GUARANTOR & PHONE#

Tenant acknowledges that they have read and received Winpark Dorchester Properties Rules and Regulations and Smoke Alarm Regulations

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Tenant initial